(c) The Contractor shall permit any authorized representatives of the head of the agency, the Cost Accounting Standards Board, or the Comptroller General of the United States to examine and make copies of any documents, papers, or records relating to compliance with the requirements of this clause.

(d) The Contractor shall include in all negotiated subcontracts which he enters into the substance of this clause except paragraph (b), and shall require such inclusion in all other subcontracts of any tier, except that this requirement shall apply only to negotiated subcontracts in excess of $100,000 where the price negotiated is not based on:

(i) Established catalog or market prices of commercial items sold in substantial quantities to the general public; or

(ii) Prices set by law or regulation.

NOTE: 1. Subcontractors shall be required to submit their Disclosure Statements to the Contractor. However, if a subcontractor has previously submitted his Disclosure Statement to a Government Contracting Officer he may satisfy that requirement by certifying to the Contractor the date of such Statement and the address of the Contracting Officer.

2. In any case where a subcontractor determines that the Disclosure Statement information is privileged and confidential and declines to provide it to his Contractor or higher tier subcontractor, the Contractor may authorize direct submission of that subcontractor's Disclosure Statement to the same Government offices to which the Contractor was required to make submission of his Disclosure Statement. Such authorization shall in no way relieve the Contractor of liability as provided in paragraph (a)(5) of this clause. In view of the foregoing and since the contract may be subject to adjustment under this clause by reason of any failure to comply with rules, regulations, and Standards of the Cost Accounting Standards Board in connection with covered subcontracts, it is expected that the Contractor may wish to include a clause in each such subcontract requiring the subcontractor to appropriately indemnify the Contractor. However, the inclusion of such a clause and the terms thereof are matters for negotiation and agreement between the Contractor and the subcontractor, provided that they do not conflict with the duties of the Contractor under its contract with the Government. It is also expected that any subcontractor subject to such indemnification will generally require substantially similar indemnification to be submitted by his subcontractors.

(e) The terms defined in section 331.2 of Part 331 of Title 4, Code of Federal Regulations (4 CFR 331.2) shall have the same meanings herein. As there defined, "negotiated subcontract" means "any subcontract except a firm fixed-price subcontract made by a Contractor or subcontractor after receiving offers from at least two firms not associated with each other or such Contractor or subcontractor, providing (1) the solicitation to all competing firms is identical, (2) price is the only consideration in selecting the subcontractor from among the competing firms solicited, and (3) the lowest offer received in compliance with the solicitation from among those solicited is accepted."

[FR Doc.72-10157 Filed 6-30-72;8:53 am]

Chapter 101—Federal Property Management Regulations

SUBCHAPTER G—TRANSPORTATION AND MOTOR VEHICLES

PART 101-39—INTERAGENCY MOTOR VEHICLE POOLS

Subpart 101-39.49—Forms and Reports

OPERATOR'S REPORT OF MOTOR VEHICLE ACCIDENT

This amendment illustrates the revised June 1971 edition of Standard Form 91, Operator's Report of Motor Vehicle Accident.

Section 101-39.4903 is revised to illustrate the June 1971 edition of Standard Form 91.

§ 101-39.4903 Standard Form 91, Operator's Report of Motor-Vehicle Accident.

NOTE: Standard Form 91, as illustrated in § 101-39.4903, is filed as part of the original document.

(Sec. 205(c), 63 Stat. 390; 40 U.S.C. 486(c))

Effective date. This amendment is effective upon publication in the FEDERAL REGISTER (7-1-72).

Dated: June 26, 1972.

G. C. GARDNER, Jr.,
Acting Administrator.

[FR Doc.72-10067 Filed 6-30-72;8:49 am]

Title 43—PUBLIC LANDS: INTERIOR

Chapter II—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 5219]

[Oregon 8764, 9040]

OREGON

Revocation of Executive Orders Nos. 5600 and 7623; Partial Revocation of Reclamation Project Withdrawal

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), and by virtue of the authority contained in section 3 of the Act of June 17, 1902, as amended and supplemented, 43 U.S.C. 416 (1970), it is ordered as follows:

1. The Executive Orders No. 5600 of April 5600 of April 16, 1931, and No. 7623 of May 29, 1937, withdrawing lands for an agricultural field station in aid of programs of the Department of Agriculture, are hereby revoked as to the following described lands:

[Oregon 8764]

WILLAMETTE MERIDIAN

T. 4 N., R. 28 E.,
Sec. 14, S½SE¼SW¼;
Sec. 22, SW¼, SE¼NW¼, S½NE¼;
Sec. 23, NW¼.

The land described contains 460 acres.

2. The Secretary's Order of August 16, 1905, withdrawing lands for the Umatilla Reclamation Project, is hereby revoked as to the following described lands:

[Oregon 9040]

WILLAMETTE MERIDIAN

T. 4 N., R. 28 E.,
Sec. 15, S½SE¼;
Sec. 22, N½N½.

The land described contains 240 acres.

The total of the areas described aggregates 700 acres in Umatilla County.

All of the lands described are patented. The title to the lands described in paragraph 1 was transferred to the State of Oregon pursuant to the Act of September 23, 1950, 64 Stat. 981, a portion of which it is contemplated will be reconveyed to the United States by the State.

Inquiries concerning the lands should be addressed to the Chief, Branch of Lands and Minerals Operations, Bureau of Land Management, Portland, Oreg. 97208.

HARRISON LOESCH,
Assistant Secretary of the Interior.

JUNE 27, 1972.

[FR Doc.72-10046 Filed 6-30-72;8:46 am]

[Public Land Order 5220]

[Sacramento 5095]

CALIFORNIA

Partial Revocation of Reclamation Project Withdrawal

By virtue of the authority contained in section 3 of the Act of June 17, 1902, as amended and supplemented, 43 U.S.C. 416 (1970), it is ordered as follows:

1. The departmental order of November 4, 1913, withdrawing lands for the Iron Canyon Project, is hereby revoked so far as it affects the following described land:

MOUNT DIABLO MERIDIAN

T. 29 N., R. 3 W.,
Sec. 32, NW¼NE¼.

The area described aggregates 40 acres in Tehama County.

2. This revocation is made in furtherance of an exchange under section 8 of the Act of June 28, 1934, as amended, 43 U.S.C. 315g (1970), by which the offered lands will benefit a Federal land program. Accordingly, the land described in this order is hereby classified, pursuant to section 7 of said Act, 43 U.S.C. 315f (1970), as suitable for such exchange. The land, therefore, will not be subject to other use or disposition under the public land laws in the absence of a modification or revocation of such classification (43 CFR 2440.4).

HARRISON LOESCH,
Assistant Secretary of the Interior.

JUNE 27, 1972.

[FR Doc.72-10047 Filed 6-30-72;8:46 am]